Songwon Specialty Chemicals-India Pvt. Ltd.
Plot No. 26 & 26B,
G.I.D.C. Ind. Estate,
Panoli, Ankleshwar,
Bharuch-394116, Gujarat,
Telephone
CIN No: U24100GJ2014FTC07919
PAN No: AAUCS4521M
GST No: 24AAUCS4521M1ZV

Purchase order

Document date: 07-12-2024

Ship to:

Songwon Specialty Chemicals-India Pvt. Ltd.
Plot No. 26 & 26B,
G.I.D.C. Ind. Estate,
Panoli, Ankleshwar,
Bharuch-394116, Gujarat,

Order address:

VIPUL LIFE SCIENCE LTD.
205/206, BPS Plaza, Devi Dayal Road, Mulund (West),
MUMBAI-400080, Maharashtra,
GST No: 27AAACV2736R1ZR

Vendor reference: Through Mail

Songwon:

SW-Ref-Number: 24-2391-SWDM-IN
PO number: PO-122100
Reference: Hardik Gandhi
Phone:
Fax:
E-mail: Hardik.Gandhi@Songwon.com

Customer:

Reference:
Phone:
Fax:
E-mail:

Means of transport: TRUCK
Terms of delivery: DAP
Incoterm place: FOR Panoli PLant
Shipping mark:

Requested Delivery Date: 31-03-2025

This Price is valid from Mid Jan-25 to Mar-25
Mention PO, GST no on invoice. delivery as per schedule.
send all necessary doc along with material Transport Rate inclusive in the above rate Material quality as per Provided COA
Payment Terms: 60 days from the receipt of material
N-Heptane
Make: Praktan

All currency in INR

Item #	SKU	Product	Qty (Net)	UoM	Unit price	Discount amount	Line total	Tax
10	49000108	n-HEPTANE-normal grade,LQ, Tanker load	120,000.00	kg	205.000	0.00	24,600,000.00	IGST 18.0%

Subtotal **24,600,000.00**

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GST No: 24AAUCS4521M1ZV

IGST 18.0%	4,428,000.00
Total	**29,028,000.00**

Payment terms: 45 da

Authorised signatory

Songwon Specialty Chemicals-India Pvt. Ltd.

Songwon Specialty Chemicals-India Pvt. Ltd.
Plot No. 26 & 26B,
G.I.D.C. Ind. Estate,
Panoli, Ankleshwar,
Bharuch-394116, Gujarat,
Telephone
CIN No: U24100GJ2014FTC07919
PAN No: AAUCS4521M
GST No: 24AAUCS4521M1ZV

Terms of Purchase

EHS Guideline:

(a) Obtain ORGANIZATION EMS Policy, understand and implement the applicable content of this policy;
(b) Ensure that it complies with all applicable EHS laws and any EHS requirements of the in force from time to time.
(c) The supplier shall ensure transportation related regulation must be complied. (e.g. Valid Vehicles Registration, Valid Driver License, Insurance certificate, Form-38, PUC, Cleaner, Reverse horn, tyre conditions, both side mirror and other specific safety requirements as per vehicles).
(d) The supplier/Service provider shall ensure that all electrical equipment used in plant shall be industrial and as per EHS requirements(e.g. Industrial Electrical board, not cuts, joints allow in to cable, welding machine with ELCB, Gas cutting set with flash back arrestor, Cap, Proper tube colour coding with no damage, cylinder trolley, Pressure gauge, Relevant PPE's etc.)
(e) Only authorised persons shall carry out operations and maintenance of electrical systems.
(f) The supplier/Service provider must be wear proper safety shoes and helmet for gate entry.
(g) The supplier shall provide initially materials safety data sheet or once in a year to continuous supply. (if Applicable)
(h) The Site shall be kept clean and tidy at all times to prevent hazards and improve general working conditions.

Safety Training

The Service provider shall inform to EHS department for training. EHS person will give Environment Health & safety training to all the vendor's personnel who enter the site for the first time to carry out a particular work.

Penalty Clause: In case of any deviation/ non-conformance in adherence to safe operating procedure or use of personal protective equipment or any other violation to safety rules and procedures, Organization will take necessary punitive action including suitable financial penalties.

1: The order must be acknowledged and delivery time confirmed.
2: Our order number must be mentioned on all the challans and bills.
3: Quantities have to be supplied strictly as per our order.
4: Bills to be send in triplicate within five days of supply.
5: Copy of challan duly acknowledged by us to be sent along with your bill.
6: Delivery to be made from Monday to Saturday 9:00am to 6:00pm.
7: - PAN No. of both 'Buyer' & 'Seller' has to be mentioned on the invoice submitted. This is must.

INSTRUCTIONS AND CONDITIONS:
1: If the date of delivery as stated in the order is required to be changed must be done immediately on the receipt of the order.
2: All goods must be delivered at our factory, unless mentioned otherwise.
3: Dispatch documents must be sent to Songwon Specialty Chemicals-India Pvt Ltd. – 394116 immediately and the goods are to be dispatched together with a detailed packing note.
4: A detailed priced invoice with necessary Sales Tax Forms must be sent within 5 days of dispatch to Songwon Specialty Chemicals-India Pvt Ltd. 394116.
5: Separate invoice must be tendered to goods delivered against different order.
6: All packages, containers, etc. to be labbled with complete details such as Mfg. Date.., Expected Date.., Batch No.., Net Wt.., Gross Wt.., Name of the Manufacturer where ever applicable.
7: Songwon Specialty Chemicals-India Pvt Ltd. Are herein after termed as "buyer". The person firm or company supplying the goods subject to their contract herein after the "Seller". The goods subject to this contract are herein after referred to as 'The Goods".
8: Unless otherwise agreed in writing by the parties delivery shall be made free by the seller and buyers words as specified on the fact of the order and seller shall be responsible for any accident, damage or loss sustained on respect of the goods up to the time buyer taking delivery of the aforesaid. This is without prejudice to any guarantee by seller as to suitability of performance of the goods.
9: In case of failure to supply to supply the goods by the seller or are not of the required quality, weight or measurement specified in the order the buyer shall have the right to cancel the order or reject the goods in both the events, buyer shall purchase the goods otherwise and any extra expenses thus incurred shall be paid by the seller to the buyer on demand.
10: Goods delivered in excess of the quantities ordered by the company will not be accepted and all charges in respect to the same will be at the risk and responsibility of the supplier.
11: All disputed subject to Panoli Jurisdiction only.

FOR PURCHASE ORDER AND SERVICE TAKEN.
1.0: SCOPE OF SUPPLY AND PRICING:

1.1: This PURCHASE ORDER is for the supply by SELLER of such materials, manufacturing processes, testing and preperation for shipment, elivery and documentation, as are necessary to ensure the supply of GOODS and/or services as detailed in the PURCHASE ORDER.
1.2: SELLER agrees that the Basic price (s) stated in PURCHASE ORDER shall be firm and not subject to price adjustment or escalation unless otherwise stated in PURCHASE ORDER or subsequent Amendment to the PURCHASE ORDER.

2.0: INDEMNIFICATION:
Seller shall defend, indemnify and hold harmless BUYER against any fine, penalty and sanction of similar nature which may be imposed on BUYER by any Government authority by reason of an alleged violation of such laws / or regulations by SELLER as well as against all claims, suits, and proceeding n that respect.

3.0: ORDER ACCEPTANCE:
Within 3 working days from the date of this PURCHASE ORDER the SELLER to confirm in writing with the acknowledgement that the SELLER can deliver the good/service on the date required by the BUYER as indicated on the PO. If SELLER is unable to guarantee the Requested Delivery Date (DTR - Deliver to request), SELLERhas to propose alternative delivery date (DTP- Deliver to Promise).

4.0: PREVENTION OF CORRUPTION:
SELLER certifies that neither it, nor its Affiliates, and to the best of its knowledge, none of its employees, representatives, or agents, has made, offered to make or agreed to make any loan, gift, donation or other payment, directly or indirectly, whether in cash or in kind, to or for the personal benefit of the employees of BUYER or its Affiliates or any other person or third party by whatsoever name called to obtain or in connection with execution or performance of the PURCHASE ORDER. SELLER further, confirms that if it learns of or has reason to know of any such payment offer or agreement to make a payment to any of the above mentioned persons or entities to obtain or in connection with execution or performance of the PURCHASE ORDER, it will immediately inform BUYER in writing communicating all information in respect of the above within the knowledge or possession of the SELLER.

Without prejudice to SELLER's obligations under this clause, SELLER shall not offer or give, or agree to give, to any employee, agent, servant or representative of BUYER any consideration of any kind as an inducement or reward for doing, refraining from doing, or for having done or refrained from doing, any act in relation to the obtaining or execution of this PURCHASE ORDER with SELLER or for showing or refraining from showing favour or disfavour to any person in relation to this PURCHASE ORDER SELLER shall not enter into this PURCHASE ORDER if in connection with it, commission has been paid or is agreed to be paid to any employee or representative of BUYER by SELLER or on SELLER's behalf, unless before this PURCHASE ORDER is made, particulars of any such commission and of the terms and conditions of any agreement for the payment thereof have been disclosed in writing to BUYER Where SELLER or SELLER's employees, servants, Sub-Sellers, suppliers or agents or anyone acting on SELLER's behalf, engages in conduct prohibited by this clause in relation to this PURCHASE ORDER with BUYER, BUYER has the right, without prejudice to any other rights or remedies available at law, to:
a) Terminate the PURCHASE ORDER and recover from SELLER the amount of any loss suffered by BUYER resulting from the termination;
b) Recover in full from SELLER any other loss sustained by BUYER in consequence of any breach of this clause, whether or not the PURCHASE ORDER has been terminated.

5.0 Fall Clause:

5.1. The price charged for the product supplied under this Purchase order by seller should be a competitive price prevailing at that time / as per the market price and shall in no event exceed the lowest price at which seller will be selling this product to any other organisations during the currency period of the Purchase Order.

5.2. If any time during the said period, seller reduce the sale price, sell or offer to sell this product to any other organisations at a price lower than the price chargeable under the Purchase Order, seller shall forthwith notify such reduction to Songwon. Accordingly, the price payable under the purchase order after the date of coming into force, as such reduction or sell or offer of sell, stand correspondingly reduced and difference in price has to be given to Songwon or will be recovered by Songwon from the existing invoice supplied.
On the other hand, if Songwon finds that market price is lower / seller is supplying this material to other organisations at a lower price than the price chargeable under the Purchase Order, it will be Songwon discretion to decide the foreclosure of the existing order or recover the difference from seller existing invoice.

6. Definition: For the purpose of addition of these new clauses the following expression shall have the following meanings:
a) GST – means any tax imposed on the supply of goods or services or both under GST Law.
b) Cess – means any applicable cess, existing or future on the supply of Goods and Services.
c) GST Law – means IGST Act, GST (Compensation to the States for Loss of Revenue) Act, CGST Act, UTGST Act and SGST Act, 2017 and all related ancillary legislations.

7. Change in Tax law: Sec. 171 of CGST/SGST Act contains provisions related to anti-profiteering. On the basis of same on introduction of GST, the Vendor should pass on the tax benefit/savings, if any, on account of tax credits or lowering of tax rates to us by way of adjustment in the contract price. Non-compliance of the same may lead to levy of penalty by Government. Any increase in tax cost due to change in the rates of tax shall be reimbursed by us.

8. Obligation of Vendor: The Vendor shall comply with all the compliance requirements under GST Law. Further, the Vendor agrees to do all things that may be necessary to enable us to claim input tax credit in relation to any GST payable under this Agreement/P.O./W.O. or in respect of any supply of Goods or Services under this Agreement/P.O./W.O. This shall include (but not limited to):

a) Issuing Invoices/Debit Notes/Revised Invoices/Credit Notes as per the prescribed format, containing all the information as is required for us to avail Input Tax Credit.
b) Submission of periodic statements/returns as per the GST laws within specified time lines with complete and correct details as may be prescribed.
c) Issuance of Debit Note within the prescribed time limit to enable us to take the Credit.
d) Timely payment of tax liability by utilization of admissible credit or through cash.
e) Ensuring that the transportation of material is covered by valid e-way bills.
f) The Vendor continuously maintains a high GST Compliance Rating Score (to be intimated through a separate mail) as per the GST Law. We reserve the right to terminate this Agreement/P.O./W.O. if the Vendor fails to achieve/maintain an appropriate GST Compliance Rating Score.
g) During the transition period, Vendor shall ensure that in respect of capital goods invoices carrying current taxes and duties are issued and such goods are received by us before appointed date. Taxes and duties will not be reimbursed if such goods are received on or after the appointed date.
h) Before raising GST Invoices post appointed date, Vendor shall coordinate with us especially in case of services with respect to address and GSTIN number on which such Invoices has to be raised.
i) Vendor should mention his GST No. along with Songwon GST No. in all the documents & invoice issued by them. THIS IS MUST.

9. Penal clause: If any amount of credit, refund or any other benefit is denied or delayed to us or any penal charge or interest is imposed on the us due to any non-compliance by the Vendor (including but not limited to the failure to upload or incorrect disclosure of details on the GSTIN portal or delay/failure to deposit tax within due dates or due to non-furnishing or furnishing of incorrect/incomplete documents by the Vendor, wrong determination of nature of supply), the Vendor shall be liable to reimburse the loss which accrues to us on the aforesaid account. Alternatively we shall be entitled to withhold the payment of all the subsequent bills issued by the Vendor and recover such loss from any outstanding payment."

GENERAL TERMS AND CONDITIONS FOR THE PROCUREMENT OF PRODUCTS AND SERVICES

1: The order must be acknowledged and delivery time confirmed.
2: Our order number must be mentioned on all the challans and bills.
3: Quantities have to be supplied strictly as per our order.
4: Bills to be send in triplicate within five days of supply.
5: Copy of challan duly acknowledged by us to be sent along with your bill.
6: Delivery to be made from Monday to Saturday 9:00am to 6:00pm.
7: - PAN No. of both ‘Buyer’ & ‘Seller’ has to be mentioned on the invoice submitted. This is must.

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7: Songwon Specialty Chemicals-India Pvt Ltd. Are herein after termed as "buyer”. The person firm or company supplying the goods subject to their contract herein after the “Seller”. The goods subject to this contract are herein after referred to as ‘The Goods”.
8: Unless otherwise agreed in writing by the parties delivery shall be made free by the seller and buyers words as specified on the fact of the order and seller shall be responsible for any accident, damage or loss sustained on respect of the goods up to the time buyer taking delivery of the aforesaid. This is without prejudice to any guarantee by seller as to suitability of performance of the goods.
9: In case of failure to supply to supply the goods by the seller or are not of the required quality, weight or measurement specified in the order the buyer shall have the right to cancel the order or reject the goods in both the events, buyer shall purchase the goods otherwise and any extra expenses thus incurred shall be paid by the seller to the buyer on demand.
10: Goods delivered in excess of the quantities ordered by the company will not be accepted and all charges in

respect to the same will be at the risk and responsibility of the supplier.
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2. INDEMNIFICATION:
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3. ORDER ACCEPTANCE:
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the PO. If SELLER is unable to guarantee the Requested Delivery Date (DTR - Deliver to request), SELLER has to propose alternative delivery date (DTP- Deliver to Promise).

4. PREVENTION OF CORRUPTION:
SELLER certifies that neither it, nor its Affiliates, and to the best of its knowledge, none of its employees, representatives, or agents, has made, offered to make or agreed to make any loan, gift, donation or other payment, directly or indirectly, whether in cash or in kind, to or for the personal benefit of the employees of BUYER or its Affiliates or any other person or third party by whatsoever name called to obtain or in connection with execution or performance of the PURCHASE ORDER. SELLER further, confirms that if it learns of or has reason to know of any such payment offer or agreement to make a payment to any of the above mentioned persons or entities to obtain or in connection with execution or performance of the PURCHASE ORDER, it will immediately inform BUYER in writing communicating all information in respect of the above within the knowledge or possession of the SELLER.

Without prejudice to SELLER's obligations under this clause, SELLER shall not offer or give, or agree to give, to any employee, agent, servant or representative of BUYER any consideration of any kind as an inducement or reward for doing, refraining from doing, or for having done or refrained from doing, any act in relation to the obtaining or execution of this PURCHASE ORDER with SELLER or for showing or refraining from showing favour or disfavour to any person in relation to this PURCHASE ORDER SELLER shall not enter into this PURCHASE ORDER if in connection with it, commission has been paid or is agreed to be paid to any employee or representative of BUYER by SELLER or on SELLER's behalf, unless before this PURCHASE ORDER is made, particulars of any such commission and of the terms and conditions of any agreement for the payment thereof have been disclosed in writing to BUYER Where SELLER or SELLER's employees, servants, Sub-Sellers, suppliers or agents or anyone acting on SELLER's behalf, engages in conduct prohibited by this clause in relation to this PURCHASE ORDER with BUYER, BUYER has the right, without prejudice to any other rights or remedies available at law, to:
a) Terminate the PURCHASE ORDER and recover from SELLER the amount of any loss suffered by BUYER resulting from the termination;
b) Recover in full from SELLER any other loss sustained by BUYER in consequence of any breach of this

clause, whether or not the PURCHASE ORDER has been terminated.

5. Fall Clause:

5.1. The price charged for the product supplied under this Purchase order by seller should be a competitive price prevailing at that time / as per the market price and shall in no event exceed the lowest price at which seller will be selling this product to any other organisations during the currency period of the Purchase Order.

5.2. If any time during the said period, seller reduce the sale price, sell or offer to sell this product to any other organisations at a price lower than the price chargeable under the Purchase Order, seller shall forthwith notify such reduction to SONGWON.
Accordingly, the price payable under the purchase order after the date of coming into force, as such reduction or sell or offer of sell, stand correspondingly reduced and difference in price has to be given to SONGWON or will be recovered by SONGWON from the existing invoice supplied.
On the other hand, if SONGWON finds that market price is lower / seller is supplying this material to other organisations at a lower price than the price chargeable under the Purchase Order, it will be SONGWON discretion to decide the foreclosure of the existing order or recover the difference from seller existing invoice.

6. Definition: For the purpose of addition of these new clauses the following expression shall have the following meanings:
a) GST – means any tax imposed on the supply of goods or services or both under GST Law.
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c) GST Law – means IGST Act, GST (Compensation to the States for Loss of Revenue) Act, CGST Act, UTGST Act and SGST Act, 2017 and all related ancillary legislations.

7. Change in Tax law: Sec. 171 of CGST/SGST Act contains provisions related to anti-profiteering. On the basis of same on introduction of GST, the Vendor should pass on the tax benefit/savings, if any, on account of tax credits or lowering of tax rates to us by way of adjustment in the contract price. Non-compliance of the same may lead to levy of penalty by Government. Any increase in tax cost due to change in the rates of tax shall be reimbursed by us.

8. Obligation of Vendor: The Vendor shall comply with all the compliance requirements under GST Law. Further, the Vendor agrees to do all things that may be necessary to enable us to claim input tax credit in relation to any GST payable under this Agreement/P.O./W.O. or in respect of any supply of Goods or Services under this Agreement/P.O./W.O. This shall include (but not limited to):

a) Issuing Invoices/Debit Notes/Revised Invoices/Credit Notes as per the prescribed format, containing all the information as is required for us to avail Input Tax Credit.
b) Submission of periodic statements/returns as per the GST laws within specified time lines with complete and correct details as may be prescribed.
c) Issuance of Debit Note within the prescribed time limit to enable us to take the Credit.
d) Timely payment of tax liability by utilization of admissible credit or through cash.
e) Ensuring that the transportation of material is covered by valid e-way bills.
f) The Vendor continuously maintains a high GST Compliance Rating Score (to be intimated through a separate mail) as per the GST Law. We reserve the right to terminate this Agreement/P.O./W.O. if the Vendor fails to achieve/maintain an appropriate GST Compliance Rating Score.
g) During the transition period, Vendor shall ensure that in respect of capital goods invoices carrying current taxes and duties are issued and such goods are received by us before appointed date. Taxes and duties will not be reimbursed if such goods are received on or after the appointed date.
h) Before raising GST Invoices post appointed date, Vendor shall coordinate with us especially in case of services with respect to address and GSTIN number on which such Invoices has to be raised.
i) Vendor should mention his GST No. along with SONGWON GST No. in all the documents & invoice issued by them. THIS IS MUST.

9. Penal clause: If any amount of credit, refund or any other benefit is denied or delayed to us or any penal charge or interest is imposed on the us due to any non-compliance by the Vendor (including but not limited to the failure to upload or incorrect disclosure of details on the GSTIN portal or delay/failure to deposit tax within due dates or due to non-furnishing or furnishing of incorrect/incomplete documents by the Vendor, wrong determination of nature of supply), the Vendor shall be liable to reimburse the loss which accrues to us on the aforesaid account. Alternatively we shall be entitled to withhold the payment of all the subsequent bills issued by the Vendor and recover such loss from any outstanding payment."

10. Prices and payment
10.1. All prices quoted by Supplier shall be fixed, without prejudice and subject to these GTC, exclusive of GST but inclusive of any other taxes, incidental costs and expenses.
10.2. All prices include the standard packaging and delivery carriage paid and additional costs due under the applicable Incoterm for delivery. Prices shall include the provision of all materials and all preparatory and other work necessary to comply with the requirements and descriptions set out in the Purchase Order. All prices include the costs for transportation, insurance, and customs, unless explicitly agreed otherwise in writing.
10.3. Prices are not subject to change, unless explicitly agreed by Songwon in writing.
10.4. The payment of an invoice shall be made in the currency agreed to within ninety (90) days of the date of invoice, unless agreed otherwise, by transferring the amount due to the bank account stipulated by Supplier. Invoices for Products will not be sent until Supplier has fully and correctly performed the Contract in accordance with the Specifications. Invoices for Services shall be submitted on a monthly basis to Songwon covering services rendered the preceding month unless explicitly agreed otherwise. Payment of an invoice by Songwon does not imply Songwon's acceptance of the performance of the Contract by Supplier in accordance with the Specifications.
10.5. The invoice must contain, as a minimum, either i) a summary description of the services that were performed during the preceding month and the period during which they were provided or ii) the description of the Products and the quantities supplied, as well as the respective Songwon and supplier Purchase Order number and should be addressed to the correct Songwon legal entity. Songwon reserves the right to return invoices which do not contain the data mentioned in this Section 3.5.
10.6. Songwon is entitled, without judicial intervention, and without prejudice to any other rights that Songwon may have under the Contract or applicable law, to offset and/or suspend payment of any amount, if it or a company affiliated to it has or will have a claim, which may or may not be enforceable, against the Supplier or a company affiliated to the Supplier.

11. Delivery and time for performance
11.1. Delivery of Products shall be made according to the applicable Incoterm 2020 and they shall be deemed to have taken place once the Products are stored on the premises designated by Songwon, unless otherwise agreed. Delivery of Products takes place during normal working hours.
11.2. The Supplier acknowledges that the agreed time and time for performance of the Contract, and/or any further deadlines or timelines specified, are of essential importance to Songwon. Partial delivery and delivery prior to the agreed date is only acceptable upon prior written agreement by Songwon.
11.3. The Supplier shall be deemed to be in default by exceeding the deadlines or timelines for performance agreed with Songwon. Any penalty agreed on for such default event shall be without prejudice to Songwon's other rights including its right to demand compliance and its right to the full payment of damages by the Supplier; the said penalty shall not be deducted from any such damages.
11.4. Songwon shall be entitled at any time and for whatever reason, by providing a written statement to the Supplier, to defer the performance of the Contract that it has ordered for a period to be specified. In such event, Supplier shall store the Products in a suitable location, separate from any other goods or products, on behalf of Songwon, insuring them and taking appropriate measures to prevent any loss of quality.
11.5. If, in the performance of the Contract in question, there is a risk of a delay occurring, the Supplier will take adequate measures on its own initiative and with immediate effect. The Supplier will promptly report the (potential) delay and the measures to be taken to Songwon in writing. Without prejudice to the above, the

Supplier will be in default without any further notice of default being required.
11.6. Supplier is liable for damage resulting from or related to undue packaging of the Products. Products delivered that are not in accordance with the Contract and/or the Specifications may be returned at the Supplier's expense and risk.

12. Performance of the Contract

12.1 The Supplier shall perform the Contract strictly in accordance with the Specifications and other relevant contractual arrangements in good workmanlike manner.
12.2 The Contract shall be performed to the best of Supplier's knowledge and with all due diligence. Parties agree that Supplier and Supplier personnel render the Services as independent parties and are not authorized to act as the agent or representative of Songwon or to represent that it or they are entitled so to act. Parties agree that no employment relationship shall exist between Songwon and Supplier or Supplier's subcontractors by virtue of Supplier's or Supplier's subcontractor's personnel providing the Services under the Contract.
12.3 The Supplier undertakes that it, its staff, and any third parties which it engages shall conduct themselves on Songwon's site and its premises in accordance with the regulations and rules of conduct applying there, for example in respect of security, safety, and health, and that they will follow any instructions or guidelines with which they are issued in that regard.
12.4 Songwon may request the Supplier to submit regular reports setting out the progress of the Services.
12.5 In the event that, in the Supplier's opinion, a change to the Contract or the Specifications requested by Songwon will lead to a new price and/or delivery date or time for performance that is not acceptable to Songwon, Songwon reserves the right to determine that the Contract shall be performed without the changes proposed or performed in a different way that is acceptable to Songwon. If the Supplier and Songwon fail to reach agreement on the new price, new delivery date or new time for performance, Songwon reserves the right to terminate the Contract with immediate effect.

13. Inspection
13.1 Songwon shall inspect the Products that have been ordered within a reasonable period after they have been delivered. Should Songwon reject the Products or should it later appear, in the reasonable assessment of Songwon, that the Products do not comply with the requirements set for them pursuant to the Purchase Order, Songwon, without prejudice to any of its other rights, may send the Products back to Supplier and give the Supplier the opportunity to resend the correct Product or to rectify and/or repair the Defects, at the Supplier's expense and risk and at the first request of Songwon. Any additional costs for transport, reproducing or reassembly shall be also at the expense of the Supplier.
13.2 Should Songwon reasonably find that the Services are not provided in conformity with the requirements set for them pursuant to the Contract or should it later appear, in the reasonable assessment of Songwon, that the Services have not so been provided, Songwon, without prejudice to any of its other rights, may give the Supplier the opportunity to provide the Services again in accordance with the Contract, at the Supplier's expense and risk and at the first request of Songwon. Any additional costs related thereto shall also be at the expense of the Supplier.
13.3 If, in the reasonable assessment of Songwon, (timely) replacement or repair of the Products or Services is impossible or if the Supplier fails to comply, within the period set by Songwon, with the request referred to in Section 6.1 or 6.2 respectively, the Supplier shall be required to repay to Songwon the amounts it has received from Songwon in relation to the Products or Services concerned. If and to the extent replacement for such Products or Services needs to be procured from third parties and proves to be more expensive than the Products or Services that should have been supplied, Supplier shall reimburse and hold Songwon fully harmless for the difference.

14. Ownership and risk
14.1. Songwon shall acquire ownership of the Products at the moment they are delivered in accordance with Section 4 or otherwise become available to Songwon.
14.2. The Supplier is liable for all losses or damages arising out of or resulting from the Products, good or deliverables and/or for any losses of and damages to such Products, goods or deliverables until the moment

they are delivered to Songwon, without prejudice to any other stipulations laid down in these GTC.
14.3. The Supplier shall have no right of retention or right to postpone obligations in respect of ordered Products or Services.

15. Warranty
15.1. The Supplier warrants at least the following:
15.1.1. the Products and Services fully comply with the Specifications, do not infringe third party rights and are suitable for the purpose for which the Contract was concluded, insofar as the Supplier was aware of that purpose or could have been aware of it;

15.1.2 Supplier in providing the Services will exercise due professional care, skill, diligence and competence in accordance with applicable professional standards and will perform the Contract entirely in accordance with the requirements as stated in the Specifications;

15.1.3. the Products and materials used in the provision of the Products and the Services are of the highest possible quality, fit for purpose insofar as the Supplier was aware of that purpose or could have been aware of it and provide the adequate level of safety, health, welfare and environment;
15.1.4. all applicable national and international laws and regulations regarding the Products (or their packaging) and the Services have been and will be complied with strictly;
15.2. The conditions laid down in this Section 8 do not affect Songwon's other rights, including those referred to in Section 11.

16. Insurance
The Supplier warrants it has taken out sufficient insurance of legal and professional liability, also covering subcontractors and their personnel, if applicable, and will remain so insured. At Songwon's first request, the Supplier will present a copy of the policy document and proof that the premiums have been paid.

17. Liability
17.1. The Supplier is liable for and indemnifies and holds SONGWON harmless against any and all direct and indirect losses or damages whether in contract, tort, breach of statutory duty or otherwise resulting from or in connection with the performance of the Contract, regardless of whether said loss or damage is caused by the Supplier itself, its staff, by other persons whom the Supplier has engaged in the performance of the Contract or any other third parties and regardless of whether SONGWON could have foreseen the possibility of such loss or damage.
17.2. Neither Party excludes liability in respect of (i) loss or damage caused by willful intent or gross negligence, or (ii) injuries to or death of any person, caused by any of its officers, employees, agents or contractors.
17.3. In the event that Supplier does not perform the Contract, or a part thereof, on the agreed time or within the agreed period for performance, SONGWON is entitled to charge Supplier for each calendar day it is in default an immediately payable penalty of 1% percent of the total price of the respective Contract, to a maximum percentage of 25% percent of the total price of the Contract. SONGWON is entitled to charge the maximum penalty at once, in the event that the respective performance remains impossible. SONGWON's right to claim penalties as set forward in this Section does not affect SONGWON's other legal rights under a Contract or under applicable laws and is without prejudice to SONGWON's right to seek compensation for the actual amount of the losses incurred in excess of the amount of the liquidated damages.

18. Force majeure
18.1. Force majeure is understood to mean circumstances that impede the fulfillment of the Contract and which are not attributable to Supplier. Supplier is obliged to report this force majeure situation to SONGWON in writing within one calendar day.
18.2. During force majeure all of Supplier's obligations shall be suspended. Should the period in which Supplier cannot fulfill its obligations as a result of force majeure continue for longer than one (1) calendar month, SONGWON shall be entitled to terminate the Contract in writing without there being an obligation to pay any

compensation whatsoever arising out of or in connection herewith.

19. Compliance
Each party shall comply with, and shall procure that its affiliates, employees, agents and representatives acting in connection with any purchase contract between the parties shall comply with, applicable laws (which shall include, without limitation, the anti-corruption, economic sanctions, export control and anti-money laundering laws of the United States of America, United Kingdom, European Union and its member states, Republic of Korea and India). In no event shall a party be obligated under any purchase contract between the parties or otherwise to take any action or omit to take any action that it believes, in good faith, would cause it to be in violation of any applicable laws, which shall include, without limitation, the anti-corruption, economic sanctions, export control and anti-money laundering laws of the United States, United Kingdom, European Union and its member states and Republic of Korea.

20. Termination and suspension
20.1. Unless otherwise determined in these GTC, in the event that Supplier fails to perform any of its obligations under the Contract, SONGWON shall send Supplier a notice of default, allowing the Supplier a reasonable period for compliance.
20.2. In the event i) Supplier fails to perform within the reasonable period as set out in the notice of default, ii) Supplier can be reasonably assumed not to perform the Contract properly or at the agreed delivery date or time for performance, iii) Supplier is declared bankrupt, granted a suspension of payment, or goes into liquidation or faces other administrative or private measures with respect to its assets, SONGWON shall, without prejudice to any of its other rights, be entitled to wholly or partly terminate the Contract and/or the Purchase Order by notifying Supplier to that effect and without any further notice of default being required and without any liability for SONGWON arising out of or related to this termination.
20.3. In the event of termination of the Contract, SONGWON shall be entitled to reclaim from the Supplier all payments it has made to the Supplier as having been unduly paid.

21. Governing law and disputes
The Contract is subject to the material national and/or local law applicable at the registered office of the procuring and purchasing SONGWON entity. The application of the United Nations Convention for the International Sale of Goods (CISG) is excluded. Each dispute arising under or in relation to a Contract shall, in first instance, be settled by the competent court for the procuring and purchasing SONGWON entity, which will have exclusive jurisdiction in respect of any such disputes.

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